

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 1847 By: Green of the Senate
3 and
4 Moore of the House
5
6
7 [Medicaid home- and community-based services -
8 eligibility - effective date - emergency]
9
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11
12 AUTHOR: Add the following House Coauthor: Deck
13 AMENDMENT NO. 1. Strike the stricken title, enacting clause, and
14 entire bill and insert:
15 "An Act relating to Medicaid home- and community-
16 based services; amending 56 O.S. 2021, Section
17 1017.3, which relates to ADvantage Waiver Program;
18 modifying eligibility criteria; providing certain
19 exception; providing an effective date; and declaring
20 an emergency.
21
22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:
23 SECTION 1. AMENDATORY 56 O.S. 2021, Section 1017.3, is
24 amended to read as follows:
Section 1017.3. To be eligible for the ADvantage Waiver
Program, a person shall:

1. Qualify financially for Medicaid;

2. Be:

a. sixty-five (65) years of age or older, or

b. nineteen (19) to sixty-four (64) years of age and:

(1) be a physically disabled adult, as determined by the Social Security Administration, ~~age twenty-one (21) years or older without~~

(2) have a developmental disability; provided, the individual does not have an intellectual disability or cognitive impairment related to the developmental disability, or

(3) have a clinically documented, progressive, and degenerative disease that responds to treatment and previously required hospital- or long-term-care-facility level of care to maintain the treatment regimen to prevent health deterioration;

3. Be determined to meet the nursing facility institutional level of care by the ~~Aging Services Division of the~~ Department of Human Services;

4. Reside in his or her own home ~~or~~, a family member's home, or an assisted living center contracted with the Department of Human Services under the ADvantage Waiver Program; and

5. Have needs that can be safely met with waiver services and family or community supports.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval."

Passed the House of Representatives the 13th day of April, 2026.

Presiding Officer of the House of
Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate

1 ENGROSSED SENATE
2 BILL NO. 1847

By: Green of the Senate

3 and

4 Moore of the House

5
6 [Medicaid home- and community-based services -
7 eligibility - effective date -
8 emergency]
9
10

11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 4. AMENDATORY 56 O.S. 2021, Section 1017.3, is
13 amended to read as follows:

14 Section 1017.3. A. To be eligible for the ADvantage Waiver
15 Program, a person shall:

16 1. Qualify financially for Medicaid;

17 2. Be sixty-five (65) years of age or older or be a physically
18 disabled adult, as determined by the Social Security Administration,
19 ~~age twenty-one (21)~~ nineteen (19) years of age or older ~~without;~~

20 3. Not have:

21 a. an intellectual disability, or

22 b. a cognitive impairment, except as provided by
23 subsection B of this section;
24

1 ~~3.~~ 4. Be determined to meet the nursing facility institutional
2 level of care by the Aging Services Division of the Department of
3 Human Services;

4 ~~4.~~ 5. Reside in his or her own home ~~or,~~ a family member's home,
5 or an assisted living center contracted with the Department of Human
6 Services under the ADvantage Waiver Program; and

7 ~~5.~~ 6. Have needs that can be safely met with waiver services
8 and family or community supports.

9 B. Notwithstanding subparagraph b of paragraph 3 of subsection
10 A of this section, a person with a cognitive impairment may qualify
11 for the ADvantage Waiver Program if:

12 1. The person resides in an assisted living center contracted
13 with the Department of Human Services under the ADvantage Waiver
14 Program;

15 2. The person was already residing in such assisted living
16 center at the time he or she developed the cognitive impairment; and

17 3. The assisted living center executes a plan of accommodation
18 with the person as described in subsection H of Section 1-890.8 of
19 Title 63 of the Oklahoma Statutes.

20 SECTION 5. This act shall become effective July 1, 2026.

21 SECTION 6. It being immediately necessary for the preservation
22 of the public peace, health or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 9th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives